

BEFORE THE IOWA BOARD OF
BEHAVIORAL SCIENCE EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 02-005
	)	
RANDALL KIEL,	)	STATEMENT OF CHARGES
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Behavioral Science Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154D, and 272C (2003).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Randall Kiel was at all times during the following events a licensed mental health counselor. Respondent was issued license number 131 00754 to practice as a mental health counselor in the state of Iowa on June 20, 2001, as recorded in the permanent records in the office of the Board.

Respondent's license to practice mental health counseling in Iowa is current and will next expire on September 30, 2004.

Respondent's current address as reported to the Board is 10061 Clark, Clive, Iowa, 50325.

COUNT I

Pursuant to Iowa Code section 272C.3(2)"a", Respondent is charged with failing to comply with a Consent Agreement.

CIRCUMSTANCES

1. Respondent and the Board entered into a Consent Agreement in February of 2001 which granted Respondent a license to practice mental health counseling subject to an indeterminate period of probation and several terms and conditions. During the period of probation, Respondent is required to practice mental health counseling only while under the supervision of a mental health counselor licensed and approved by the Board. (Consent Agreement, ¶ 1"b" and "c").

2. The Consent Agreement provides that if the Respondent violates the terms of the agreement in any respect, the Board may institute formal disciplinary

proceedings. (Consent Agreement, ¶ 4).

3. Respondent provided mental health counseling to several clients from October 1, 2002, through June 1, 2003, in the absence of the required supervision.

FINDING OF PROBABLE CAUSE

On December 12, 2003, the Iowa Board of Behavioral Science Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

This Statement of Charges is approved by the board on December 12th, 2003.